

lunatic's maintenance in exoneration of her absolute property (e).]

5. **Maintenance of infants.**—If a fund be applicable to the *maintenance of children* at the discretion of trustees, the Court will not take upon itself to regulate the maintenance, but will leave it to the trustees (f). [But the discretion must be exercised within the limits of a sound and honest execution of the trust (g); and where the Court was of opinion that the exercise of the discretion had not been proper, it set it aside and regulated the maintenance irrespective of the wishes of the trustees (h). But the Court has no jurisdiction on a summons for maintenance intitled only "in the matter of the infant" to control the discretion of the trustees which can only be done in an action or on an originating summons to which the trustees are made parties.¹

6. Where trustees are guardians of infants, and one guardian pays the income to the other guardian for the maintenance and education of the infants, he will not be discharged by such payment, but must show that the infants [*615] have been properly maintained and *educated, and that the amount paid to the other guardian was a proper allowance for the purpose (a).]

7. **Mode of execution of trust.**—Where a fund is bequeathed to executors or trustees upon trust to distribute among the testator's relations, or apply the fund to any other specific purpose *in such manner as the executors or trustees may think fit*, the executors or trustees, if willing to execute the trust, will not, even on a suit being instituted for carrying the trusts into execution, be deprived of their discretionary power, but may propose a scheme before the judge in chambers for the approbation of the Court (b).

[(e) *Re Weaver*, 21 Ch. D. 615.]

Hare, 410; *Davey v. Ward*, 7 Ch. D. 754.]

[(f) *Livesey v. Harding*, Taml. 460; *Collins v. Vining*, C. P. Coop. Rep. 1837-38, 472; *Brophy v. Belamy*, 8 L. R. Ch. App. 798.

[(h) *Davey v. Ward*, 7 Ch. D. 754; [*Re Roper's Trusts*, 11 Ch. D. 272.]

[(g) *Costabadie v. Costabadie*, 6

[(a) *Re Evans*, 26 Ch. D. 58.]
 (b) *Brunsden v. Woolredge, Amb.*

¹ *Re Lofthouse*, 29 Ch. Div. 921.